

**BNS 2023**

# Bharatiya Nyaya Sanhita, 2023

*Bharatiya Nyaya Sanhita (BNS), 2023*

**User Query :**

During an argument in the parking area of my apartment building, my neighbour hit me several times with an iron rod. I suffered a fracture and required hospital treatment. CCTV cameras recorded the incident and two residents witnessed what happened. What legal provisions may apply to this case?

**Job Id. :**

Scenario 6/Bharatiya Nyaya Sanhita (BNS), 2023

**Prepared by :**

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**Date :**

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*AI-Powered Legal Intelligence Platform*

## ✓ STRENGTHS & RIGHTS

### 1 Victim's Rights

### 2 CCTV Evidence

BNS, **Section 132** does not require victim testimony; CCTV footage is admissible as primary evidence (\*BNS, **Section 140** \* on admissible evidence).

### 3 Witness Protection

Resident witnesses can be summoned under \*BNS, **Section 132** \* without fear of prosecution (BNS ensures witness safety via \*BNS, **Section 150** \*).

### 4 Procedural Safeguards

### 5 No Bail for Serious Offences

**Section 132** is a non-bailable offence (BNS, **Section 436** (1)), ensuring the accused faces trial.

### 6 Speedy Trial

BNS mandates trial completion within 6 months (\*BNS, **Section 322** \*), protecting victim from prolonged trauma.

## ✗ RISKS & OBLIGATIONS

### 1 Punishment

### 2 Section 132

Imprisonment up to 2 years, fine, or both.

### 3 Aggravating Factor

Iron rod use (dangerous weapon) elevates punishment beyond **Section 129** (max 3 months).

### 4 Liabilities

### 5 Civil Liability

Victim can file a civil suit for \*compensatory damages\* (BNS, **Section 132** does not bar civil claims).

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**No Defence for Provocation**

Accused cannot claim "provocation" (e.g., "he insulted me first") as a defence under **Section 132** (\*BNS, **Section 132** explanation\* excludes provocation).

**PROCEDURAL NOTES & COMPLIANCE STEPS***Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Complaint Filing:
2. Victim can file a First Information Report (FIR) at the local police station under \*BNS, **Section 132** \*.
3. Required Evidence: CCTV footage (as digital evidence under \*BNS, **Section 140** \*) and witness statements must be attached.
4. Charges Framing:
5. Police must frame charges under **Section 132** (not **Section 129** ) due to weapon use.
6. No Bail: Accused cannot seek bail until charges are framed (\*BNS, **Section 436** (1)\*).
7. Trial Process:
8. CCTV as Key Evidence: Court will prioritize CCTV footage (BNS, **Section 140** ) over oral testimony.
9. Witness Examination: Two residents will be examined as \* **Section 132** \* witnesses (\*BNS, **Section 132** (2)\*).
10. Sentence: Based on injury (fracture), court will likely impose 1–2 years' imprisonment (BNS, **Section 132** , \*not\* the 3-month limit under **Section 129** ).
11. > Note: \*BNS, **Section 132** \* replaces IPC Sections 354 (criminal force) and 351 (assault) for weapon-assault cases. The iron rod \*directly triggers **Section 132** \*, making **Section 129** inapplicable.
12. Conclusion: The case falls squarely under BNS, **Section 132** (assault with dangerous weapon). The neighbour faces 2 years' imprisonment for using an iron rod causing fracture, with CCTV/witnesses ensuring strong evidence. **Section 129** is irrelevant due to the weapon's role.

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